THE HONORABLE THOMAS S. ZILLY

UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF WASHINGTON
AT SEATTLE

DAVID PETERSEN, ET AL

Plaintiff,

vs.

SNOHOMISH REGIONAL FIRE AND RESCUE

Defendant

Case No.: 2:22-cv-01674-TSZ

PLAINTIFF'S MOTION FOR PARTIAL SUMMARY JUDGMENT

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I. INTRODUCTION

Snohomish Regional Fire and Rescue (SRFR) failed to accommodate the Plaintiffs. Such failure was due to an erroneous analysis under ADA law and the defunct *de minimis* standard. Plaintiffs believe the fundamental errors of law preclude SRFR from backfilling reasons for a "correct" analysis of undue burden. Nevertheless, even under a correct standard, the accommodations do not rise to the level of undue burden under the [unanimous] *Groff* decision.

The following errors on the part of SRFR warrant the Court granting this motion: 1. Unpaid leave is not a reasonable accommodation under Title VII; 2. Defendant's use of the *de minimis* standard at the time of the accommodation precludes them from asserting "undue burden" under *Groff*; 3. SRFR analyzed the accommodation/plaintiffs under an improper ADA inquiry which fails under religious accommodation requirements; and 4. finally, the accommodation of masking, testing, and social distancing did not rise to the level of undue burden.

Based on the subsequent reinstatement of the Plaintiffs, seven months after failing to accommodate, SRFR can allege no set of facts that make accommodation an undue burden. Plaintiff can show that SRFR could have accommodated Plaintiffs with masking, testing, and social distancing without issue as to material fact(s), and without effect on the conduct of SRFR's business. *Groff v. DeJoy, 143 S. Ct. 2279,* (cleaned up).

SRFR provided masking, testing, PPE, and social distancing to the vaccinated who could also transmit and spread CV-19. Such provision was without burden or hardship, and there is no evidence that their unvaccinated employees posed a greater threat while following the "Playbook" safety protocols (masking, testing, social distancing, etc.) for over 18 months.

Asserted safety concerns may be a pretext for discrimination. See, *Makhzoomi v. Southwest Airlines Co.,* 419 F. Supp. 3d 1136, 1155 (N.D. Cal. 2019). The law requires SRFR to prove why accommodating the Plaintiffs proved unduly burdensome. *Peterson v. Hewlett-Packard Co.*, 358 F.3d 599, 606 (9th Cir. 2004). SRFR cannot overcome the burden of proof. *See Roman Catholic Diocese of Brooklyn v. Cuomo*, 141 S. Ct. 63, 68 (2020) ("Before [restricting religious practice due to COVID-19], we have a duty to conduct a serious examination of the need for such a drastic measure.").

Although SRFR cited safety concerns regarding the unvaccinated they did not require a booster shot which ensures the highest level of protection for anyone, including the public that SRFR serves and its employees. Tribbett Decl. Ex. I, McConnell Dep. 54:12-25.

II. MATERIAL UNDISPUTED FACTS

A. Plaintiff's Job and Job Duties

Undisputed Facts

1. Each Plaintiff held the job of firefighter (I-III), and also held either a paramedic or EMT license through the State of Washington. Affidavit of Gleason, Korf, Merritt, Peterson, Petersen, Stickney, Stupey, Watson, p. 1. All Plaintiffs were employed by SRFR. The job duties that each employee was required to perform were being performed by them, up to October 18, 2021, while masked and with other safety precautions as dictated by the "CV19 playbook" and iterations. Id. P. 2-3, Tribbett Decl., Ex. A1-3, Ex. B The Playbook never prohibited unvaccinated firefighters from performing their jobs nor did it recommend exclusion of the unvaccinated. Id.

2. The CV19 playbook was a safety protocol document drafted by local experts and followed by SRFR. Tribbett Decl. Ex. A1-3 PB 7-29-21, 10-18-21, 04-14-22, Ex. H, SRFR

30(b)(6) 46:12-47:3, 110:7-22. This playbook was followed by the firefighters employed by SRFR, and SRFR relied on this expert guidance as a primary directive in operating procedures during the pandemic. Id., *See also* Plaintiff Affidavit(s) p. 4 "Safety Procedures During the Pandemic" #7.

3. Each Plaintiff had core job duties which required them to respond to emergency medical service calls, care for the sick or injured, drive and operate an emergency vehicle or aid unit, and other duties. Tribbett Decl. Ex. B, SRFR_020015, Job Duties, Affidavit(s) of Plaintiff(s) p. 2

4. Plaintiffs' jobs required them to be within 6 feet of a co-worker or patient while responding to calls. This occurred only when responding to an EMS call and, per the playbook, Plaintiffs were masked and outfitted with additional PPE (level I or III) as required by Ex. A. All firefighters regardless of vaccination status were required to follow this protocol. Id. **This requirement was in effect during the entirety of the pandemic from approximately March 2020 through October 18, 2021, and upon Plaintiffs return in May of 2022. Id.**

B. <u>Safety Operations During the Pandemic per the "Playbook"</u>

Undisputed Facts

1. Playbook(s) were drafted by Snohomish County Fire Departments in conjunction with all fire departments in the County. Some counties include Everett, South County, Snohomish Regional Fire and Rescue, and Marysville. SRFR 30(b)(6) 46:12-47:3, 110:7-22.

2. The playbook (PB) changed over time as updates from health officials and agencies were advised. The PB utilized by SRFR as of October 18, 2021, included the following

safety measures:

a. Mandatory masking in the station, apparatus, & public settings. Masks could be removed in a station setting when eating, alone in a room, outside, and able to socially distance (6 ft)

b. CV19 vaccinated employees could remove their masks following a negative CV19 test. Level II PPE, at a minimum, shall be worn on ALL EMS responses: (N95 mask & safety glasses) Level III PPE shall be worn based on risk assessment: (level II + face shield/goggles & gown). The risk assessment included whether the call was a known or suspected CV19 infection, patients requiring advanced airway, or other aerosol-generating procedures.

c. And responses to adult care, assisted living units, nursing homes, and other high-risk facilities. Tribbett Decl. Ex. A1-3, Ex. M SRFR_020804, 000927

3. South County, a neighboring fire district, utilized the same Playbook(s) as SRFR and accommodated their firefighters. South County (SC) 30(b)(6) Dep. 14:4-17:14. South County responded to EMS calls with SRFR firefighters under what is known as interlocal agreement or "mutual aid" contracts as did Getchell FD, and Mason County. Petersen Aff. p. 7 #5, Stickney Aff. #18-19.

4. Plaintiffs obtained jobs with neighboring firefighting agencies, who accommodated them, and were responding to the same calls as SRFR including DOC EMS calls under the mutual aid contract. Id.

C. SRFR's CV19 Policy

Undisputed Facts

1. SRFR adopted Policy 921 "Vaccine Mandate for Healthcare Providers" which undertook to implement the requirements of Proclamation 21-14. SRFR's policy

covering reasonable accommodations, 3.4, outlined accommodations under ADA and Title VII. Title VII reasonable accommodation would be allowed as required by law. Section 3.4(b) outlined policies and procedures. Each Plaintiff followed the requirements and submitted documentation requesting an exemption based on their beliefs. Each Plaintiff was deemed to have a sincerely held belief and SRFR then determined whether a reasonable accommodation could be made. Tribbett Decl. Ex. C Pol 921, Dkt #1-6. SRFR's policy stated that [they] may refuse to grant accommodation to the extent it imposed a hardship [on SRFR] or impose[d] a direct threat to others in the workplace. For an accommodation related to a sincerely held religious belief, an undue hardship would be more than a minimal cost or burden on the employer. Ex. C at SRFR_004999.

D. The Failure to Accommodate

Undisputed Facts

1. Employees were given unpaid leave in accordance with the Contract Bargaining Agreement, Sec. 13.2. Any employee was able to apply for leave under the CBA. Employees were also accommodated by being able to use their paid leave bank (sick, vacation, and the like---get the letters used in the MOU and/or CBA) and, following dismissal, could opt to be placed on an ADA "disability" rehire list for two years. Dkt #1-5,1-6. Tribbett Decl. Ex D, CBA, D.P_CBA 000001

2. SRFR informed the Plaintiffs that no accommodation could be provided. Dkt # 1-6.

3. SRFR stated that no reasonable accommodation could be made which sufficiently mitigated the risk of having [them] perform the essential functions of their job. Id.

4. SRFR's insurance policy is held with WCIA and has a transmissible disease

exclusion under section aq. The exclusion states that WCIA will **exclude** from coverage **any** liability, defense cost, or any other amount incurred by or accruing directly or indirectly and regardless of any other cause contributing concurrently or in any sequence, originating from, caused by, arising out of, contributed to by, resulting from, or otherwise in connection with a Communicable Disease or the fear or threat (actual or perceived) of a Communicable Disease. Ex O WCIA Policy, BATES SRFR_000916. This policy does not speak to vaccination status and is effective as to anyone. Id.

5. This policy was effective from January 1, 2021, through year-end. Id.

III. STATEMENT OF THE ISSUES

1. SRFR violated Title VII in placing Plaintiffs on unpaid leave as a form of accommodation.

2. SRFR's use of the de minimis standard violates Groff and taints their analysis of undue burden

3. SRFR's use of ADA standards fails to satisfy Title VII Religious Accommodation requirements.

4. The requested accommodation: masking, testing, social distancing, and following the "playbook" protocol would not have posed an undue burden/hardship on SRFR regardless of what standard they undertook in their analysis.

IV. EVIDENCE RELIED UPON

Plaintiff's responsive motion relies on the evidence cited herein and filed with this brief, and the pleadings filed in this case.

V. ARGUMENT

A. Standard for Summary Judgment

Summary judgment is appropriate [when], viewing the facts in a light most favorable to the nonmoving party, there is no genuine issue of material fact that would preclude the entry of judgment as a matter of law. *Celotex Corp. v. Catrett*, 477 U.S. 317 Plaintiff moves this Court for partial summary judgment on the issue of "failure to accommodate" under Title VII, 42 USC §2000. The facts on this issue are straightforward and not open to debate. Plaintiffs asked for and received an exemption from the CV19 policy of SRFR, they were granted a reasonable accommodation of unpaid leave following the use of accrued leave bank(s) and were then to be placed on a disability rehire list. Dkt #1-5, 1-6.

Defendants used a dually erroneous standard of *de minimis* burden/cost, and ADA "performance of the essential functions of the job" to determine whether they could accommodate Plaintiffs. Subsequently SRFR used an ADA accommodation of leave without pay. Seven months later SRFR brought back the Plaintiffs (and others) and accommodated [them]. Dkt #1-8

The party seeking summary judgment bears the burden of establishing the basis for its motion. *Celotex*, 477 U.S. 317, 323 (1986). Fed. R. Civ. P. 56 allows the granting of summary judgment if: the pleadings, the discovery and disclosure materials on file, and any affidavits show that there is no genuine issue as to any material fact and that the movant is entitled to judgment as a matter of law. Fed. R. Civ. P. 56(c). SRFR cannot designate material facts showing a genuine issue for trial regarding accommodation, and this Court may grant summary judgment as a matter of law. See Celotex, 477. "Where the record taken as a whole could not lead a rational trier of fact to find for the non-moving party, there is no genuine

issue for trial." *Matsushita Elec. Indus. Co. v. Zenith Radio Corp*., 475 U.S. 574, 587, 106 S. Ct. 1348, 89 L. Ed. 2d 538 (1986) (cleaned up). However, "uncorroborated and self-serving" testimony will not create a genuine issue of material fact. *Villiarimo v. Aloha Island Air, Inc*., 281 F.3d 1054, 1061 (9th Cir. 2002). "*Conclusory"* or *"speculative"* testimony is likewise "insufficient to raise genuine issues of fact and defeat summary judgment. *See Hous. Rights Ctr. v. Sterling*, 404 F. Supp. 2d 1179, 1183 (C.D. Cal. 2004). SRFR's conclusion that the potential risk(s) posed by the unvaccinated is conclusory and speculative as it relates to the facts specific to this case.

B. Plaintiffs Can Establish a Prima Facie Case of Discrimination.

SRFR failed to fulfill the [employer's] obligation under Title VII. Courts apply a two-part framework to review claims of religious discrimination under Title VII. *Tiano v. Dillard Dep't Stores, Inc.* 139 F.3d 679, 681 (9th Cir. 1998) (citing *Heller v. EBB Auto Co*., 8 F.3d 1433, 1438 (9th Cir. 1993)). Title VII, 42 USC § 2000e-2(a), prohibits employers from discriminating against any individual with respect to the terms, conditions, or privileges of employment, because of the individual's religion. An employer must "reasonably accommodate" an employee's religious practice unless such accommodation would impose "undue hardship" on the conduct of the employer's business. Id. *§2000(e)(j).*

Under WLAD, RCW §49.60, employers may not refuse to hire, discharge, bar from employment or discriminate against in compensation or other terms of employment any person because of their religion. RCW §49.60.180; *Kumar v. Gate Gourmet, Inc*., 180 Wn. 2d 481, (en banc). WLAD creates a cause of action for failure to reasonably accommodate. *Id.* at 203. To plead a WLAD failure-to-accommodate claim, Plaintiffs must plausibly allege substantially the same elements as a Title VII failure-to-accommodate claim. Id. Therefore,

this court may analyze the claims together.

Plaintiffs satisfied what is required of them at law to prove the sincerity of beliefs; SRFR cannot show any set of facts that they attempted to reasonably accommodate the Plaintiffs' religious belief(s) nor that accommodation would have been an undue hardship. *See Balint v. Carson City*, 180 F. 3d 1047, 1050-1051.

1. Plaintiff(s) Hold a Bona Fide Belief and Informed the Employer Thereof, and the Employer Accepted as Sincere those Beliefs.

The first prong, under the framework of failure to accommodate analysis, requires the Court to look for the satisfaction of three requisites: whether the employee had a bona fide religious belief, the practice of which conflicts with the employment requirement, if the employee informed the employer of the conflict with their belief, and lastly, if the employer discharged, threatened, or otherwise subjected [them] to an adverse employment action because of their inability to [become vaccinated]. *Peterson v. Hewlett-Packard Co*., 358 F.3d 599 (9th Cir. 2004), *Bolden-Hardge v. Off. Of Cal. State Controller*, 63 F.4th 1215 (9th Cir. 2023), 42 USC §2000; *Kumar v. Gate Gourmet Inc*., 180 Wn. 2d 48 (RCW 49.60). Plaintiff(s) can establish a prima facie case of discrimination: Plaintiffs hold sincere beliefs, they informed the employer of [their] beliefs and the conflict with the CV19 vaccine requirement, the employer discharged them and/or took adverse action. Dkt #1-4,1-6.

a. Plaintiffs hold sincere beliefs which prohibit them from obtaining the CV19 vaccination.

The plaintiffs' beliefs are not squarely before the court on this partial motion for summary judgment. However, Plaintiffs can show that they informed their employer of their bona fide religious beliefs. Dkt #1-2. Each plaintiff attested to a conflict between their beliefs

and the requirements to vaccinate under Policy 921.

b. Plaintiffs informed SRFR of the conflict.

Each Plaintiff submitted a request for an exemption from the vaccine requirement and an accommodation thereto. Dkt #1-4 Each Plaintiff held an interactive meeting with either Pamela Holtgeerts or Kendra Johnson (Timms). *See e.g.,* Tribbett Decl. Ex F, SRFR_000368 _006617. Each Plaintiff received a letter from SRFR telling them that they accepted their beliefs as sincere but could not accommodate [them]. Dkt #1-4.

c. Defendants did not challenge Plaintiff's beliefs at the time of the interactive accommodation process.

Plaintiffs can also show that SRFR accepted as sincere their beliefs. Plaintiffs received a letter accepting their beliefs as sincere. Dkt #1-6 Plaintiffs request enabled SRFR to make a determination regarding sincerity. [A sensible approach would require only enough information about an employee's religious needs to permit the employer to understand the existence of a conflict between the employee's religious practices [*12] and the employer's job requirements. *Heller v. EBB Auto Co*., 8 F.3d 1433, 1439.] Plaintiffs are not asking the Court to determine the sincerity of those beliefs as Defendants still maintain the right to challenge such. Thereafter, the burden shifts to the employer to show [they] initiated good faith efforts to accommodate or that such an accommodation would pose an undue hardship. *Tiano*, 139 F.3d 679, 681-82. SRFR can show neither effort nor hardship.

2. SRFR did not initiate a good faith effort to accommodate.

Having satisfied the first requirement under Title VII, Plaintiffs move on to the failures by SRFR, the second prong. *Heller*, 8 F.3d 1433, 1438 (9th Cir. 1993), *Tiano,* 139 F.3d 679, (9th Cir. 1998). Employers must reasonably accommodate an employee's practice of religion, not merely assess the reasonableness of a particular possible accommodation or

accommodations. *See Adeyeye v. Heartland Sweeteners, LLC*, 721 F.3d 444, *Groff v. DeJoy*, 143 S. Ct. 2279, 2296.

Resolution of the conflict between the religious belief and the job requirement is imperative within the Title VII framework. An employer has met the Title VII obligation to reasonably accommodate an employee's religious practice "when it demonstrates that it has offered a reasonable accommodation to the employee." *Ansonia Bd. of Educ. v. Philbrook*, 479 U.S. 60, 69, 107 S. Ct. 367, 93 L. Ed. 2d 305 (1986). Unpaid leave is not a reasonable accommodation.

Binding precedent, in the 9th Circuit, requires employers [in Washington] to: give special treatment to the religious belief and the accommodation process, *EEOC v. Abercrombie & Fitch Stores, Inc*., 575 U.S. 768, requires them to "take the "initial step" towards accommodating [the employee's] conflicting religious practice" by suggesting a possible accommodation, *Heller* (9th Cir,1993) 8 8.F.3d at 1441-1442), and accommodate absent undue hardship on the conduct of the employer's business. *Groff*, 143 S. Ct. 2279. All of these cases point towards an implicit obligation to expend effort in accommodating an employee. The meager concession offered by SRFR is that "the leave of absence would not have been granted were it not for the MOU", but that is hardly an accommodation, and it was available to any employee under the CBA unpaid leave provision. Tribbett Decl. Ex #H SRFR 30b6 118:14-20, 132:18-135:-3, Dkt #1-5. Payout of entitlements the firefighters already held as a property interest(s) was no concession and no resolution.

While any reasonable accommodation is sufficient to satisfy Title VII, *Ansonia*, 479 U.S. at 68, an available option that would allow the employee to keep working may affect the reasonableness of one which would not. *See Mois v. Wynn Las Vegas LLC*, 715 F. App'x 600,

601 (9th Cir. 2017) (unpublished). (holding unpaid leave to be unreasonable where ADA allowed for light duty work). Here, SRFR had accommodations available that removed the conflict and allowed [the unvaccinated] to continue working without an undue burden or hardship on the operations or safety. Those accommodations: masking, testing, and social distancing were used for the vaccinated employees who also contracted, and could spread, CV19. Ex. A1-3, Ex. H 30(b)(6) Dep. p. 90 ln 7-25, 91 ln 1-19. SRFR made three fatal errors in their accommodation process:

a. Unpaid leave is not a Reasonable Accommodation.

First, SRFR erroneously used unpaid leave as an accommodation. This was a right under the CBA not an accommodation. Tribbett Decl. Ex D Article 13, p. 14, SRFR 30(b)(6), 119:9-21. A person effectively fired would have been entitled to payment of leave, including accrued leave and sick leave irrespective of an "accommodation". Id. That is to say: the payment of accrued leave was merely restatements of rights already held by all employees through their CBA if they were terminated. "Being placed on indefinite unpaid leave because your employer doesn't like your religious beliefs is obviously an adverse employment action and an actionable claim under Title VII of the Civil Rights Act of 1964." *Sambrano v. United Airlines, Inc*., 45 F.4th 877, 879, Hon. Ho concurrence.

SRFR's accommodation is not reasonable. A "reasonable" accommodation under Title VII is one that "eliminates the conflict between employment requirements and religious practices" not one that eliminates the employee. *See Ansonia*, 479 U.S. 60 "An accommodation is reasonable as a matter of law, if it, in fact, eliminates a religious conflict in the workplace; accordingly, if the conflict is eliminated the employee has no right to insist upon a different accommodation that he prefers." *Telfair v. Fed Express Corp*, 934 F. Supp.

2d at 1384 (citing *Sturgill v. UPS*, 512 F.3d at 1031-1032); *Breshears v. Or. Dep't of Transp.*, 2023 U.S. Dist. LEXIS 3280, *9. Dispensing with the conflict by [effectively] terminating the employee is not in line with Title VII history, purpose, and precedent.

"[T]he fact that unpaid leave may, in certain circumstances and where requested, constitute a reasonable accommodation does not mean that it cannot also be an adverse action, particularly where the employee is placed on unpaid leave involuntarily." *Steenmeyer v. Boeing Co.*, 92 F. Supp. 3d 1024, 1031 (W.D. Wash. 2015); see also *Dawson v. Akal Sec. Inc.*, 660 F. App'x 504, 506 (9th Cir. 2016) (unpublished) (holding that involuntary unpaid leave may be an adverse employment action) (citing *Steenmeyer*, 92 F. Supp. 3d at 1031). *Zimmerman v. PeaceHealth*, 2023 U.S. Dist. LEXIS 201874, *15. For firefighters, unpaid leave has a significant effect on the job status and employment prospects of plaintiffs. *See Ansonia*, 479 U.S. at 70–71 (internal quotations omitted), *See e.g.* Peteresen Aff. p. 3 #1-9. In the instance of a disability accommodation under ADA, unpaid leave is meant to give the employee an opportunity to recover from the disability and return to work once healed. This is wholly different than the requirements under Title VII which obligate an employer to resolve the conflict (s). *Id.* at 60. Plaintiffs were not disabled, and their status was not one from which they would heal or change; the leave of absence was meant to coerce the Plaintiffs into getting vaccinated by giving them a Hobson's choice.

The U.S. Supreme Court has held that a period of just 37 days of unpaid leave, even when later reimbursed, constitutes an adverse employment action. *See Burlington N. & Santa Fe Ry. Co. v. White*, 548 U.S. 53, 72 (2006). Despite the employee subsequently receiving backpay, the Supreme Court noted that "White and her family had to live for 37 days without income" and "[t]hey did not know during that time whether or when White could return to

work." Id. "Many reasonable employees would find a month without a paycheck to be a serious hardship." Id. Using the coercive power of the paycheck SRFR placed Plaintiffs between Scylla [faith] and Charybdis [career]. *See Sambrano,* con. Hon. Ho.

Each of the Plaintiffs attested to the difficulty, particularly for a firefighter, of being placed on unpaid leave for a year. Affidavit of Gleason, Merrit, Korf, Petersen, Peterson, Stickney, Stupey, and Watson, "Unpaid leave is not a reasonable accommodation" p. 3 . Firefighters cannot transfer laterally. *Id*. Allowing unpaid leave as a reasonable accommodation makes Title VII of no effect.

b. SRFR Used an Erroneous Standard of Undue Burden/Hardship

Next, Plaintiffs turn to SRFR's CV19 policy, 921, which explicitly states that an accommodation will not be given if it imposes more than a *minimal cost or burden* on SRFR. In *Groff v. DeJoy*, 2023 WL 4239256, the Court 'clarified what Title VII requires.' Id. at *4. The Court held that the 'more than *de minimis* cost' standard 'does not suffice to establish 'undue hardship' under Title VII.' *Groff,* 2023 WL 4239256, at *10. Instead, in order for a cost to constitute an 'undue burden, the requisite burden, privation, or adversity must rise to an 'excessive' or 'unjustifiable' level.' Id. To be excused from providing religious accommodation, Title VII requires an employer to show that the burden of granting an accommodation would result in substantially increased costs in relation to the conduct of its particular business. *Id.* at *11.

SRFR can show no increase in cost which substantially impacted their business. Vaccinated employees were accommodated in the exact manner requested by Defendant per the "Playbook". Ex. A1-3, PB Oct 18, 2021. The playbook was drafted by experts in their field (fire-fighting agencies located around Snohomish County) and relied on by SRFR in

operating during the pandemic. SRFR 30(b)(6) Dep., p. 110, ln 17-22, Ex. I p. 16, ln 3-16. The expert advice SRFR relied on, Playbook Experts, never stated that accommodating the unvaccinated with masking, testing, and distancing was a risk or threat, and specifically provided for such employees. *Id*. Nor did Dr. Cooper, SRFR's supervising doctor, make any such statement. Id. 143:8-16.

SRFR doubled down on their insistence of a *de minimis* standard in their EEOC responsive document. Ex. #E p.8. SRFR relied heavily on the hypothetical risk of transmission and events that would flow therefrom. Tribbett Decl. Ex. N SRFR_001794. Additionally, SRFR relied on the potential risk of an insurance exclusion to deny accommodation(s). Ex. O SRFR_00916. However, this exclusion was not vaccine sensitive in that it applied to the vaccinated also. *Id*. The vaccinated posed a risk also, but only the vaccinated were a risk SRFR was willing to absorb under any standard. Compounding their failure is the fact that SRFR likely arrived at a greater than *de minimis* cost due to their conclusion that the Plaintiffs could not "perform the essential functions of their job" under an erroneous ADA analysis.

c. ADA Analysis of a Request for Religious Accommodation is Improper.

SRFR utilized the wrong legal accommodation standard and analysis. The issue before the Court requires analysis of SRFR's position regarding the "performance of the essential functions of the job" which is erroneous under Title VII case precedent. "Essential functions" are defined under ADA law as fundamental job duties of the employment position not including the marginal functions of the position. 29 C.F.R. § 1630.2(n)(1). If a disabled person cannot perform a job's "essential functions" (even with a reasonable accommodation), then the employment protections of the Americans with Disabilities Act (ADA), 42 U.S.C.S.

§ 12101 et seq., do not apply. *Bates v. UPS*, 511 F.3d 974, 981.

Because of this erroneous starting point, all analysis flowing therefrom was tainted in terms of assessing "undue burden" because it was not analyzed under a Title VII framework. ADA requirements are similar but distinct in that they involve physical infirmities necessitating an accommodation without which the employee cannot perform those functions. *Allen v. Pac. Bell,* 348 F.3d 1113, 1114 (9th Cir. 2003), 42 USC § 12112(a), (b)(5)(A). Plaintiffs were not asking for an exemption from their job requirements. *See Cooper v. Dignity Health, DBA*, 2021 U.S. App. LEXIS 24632, *3. Further proof of improper analysis, the Defendants used ADA language, 42 USC §12111(8), in listing unvaccinated as "unqualified" employees. Tribbett Decl. Ex. G SRFR_004297. *See Avila-Arreola v. King Orchards*, 2021Dist. LEXIS 156930, *10-11. SRFR placed the Plaintiffs on a disability rehire list which is exclusively for those with disability/medical issues. SRFR 30(b)(6) p.120:12-121:18. These three fatal flaws slay any defense by SRFR that they afforded SRFR a proper accommodation under Title VII law and precedent.

d. SRFR Afforded the Exact Accommodations Requested by the Unvaccinated to the Vaccinated.

Under a proper Title VII analysis, if the employee succeeds in establishing a prima facie case, the burden shifts to the employer to prove that it either "initiated good faith efforts to accommodate reasonably the employee's religious practices, which SRFR did not, or that it could not reasonably accommodate the employee without undue hardship." *Tiano*, 139 F.3d at 681 (citations omitted). *MacDonald v. Or. Health & Sci. Univ.*, 2023 U.S. Dist. LEXIS 151070, *8-9. Defendant had operated safely with the Playbook procedures, and the [actual] accommodation inquiry should have been whether the unvaccinated could perform their jobs,

while accommodated, safely. Tribbett Decl., SRFR 30(b)(6) Dep. 52:20-54:7.

Masks, tests, and social distancing do not function differently on the basis of vaccination status. SRFR stated the reasons that they could not accommodate included 1-6 on p. 3 of their EEOC response. Ex. E RFP_EEOC_000003, SRFR 30(b)(6) Dep 82:19-24, 83:25- 84:24, 85:1-21. What is glaringly obvious is that the actual accommodations were costs that SRFR would absorb for the vaccinated but would not absorb for the unvaccinated. *Id* 84:16-85:21. As to the risk of continuing to employ the unvaccinated, SRFR failed to take a fact-specific review of their employees' CV19 history and the risk they actually, as opposed to theoretically, posed. *Id*.100:14-22.

Testing is the first layer which works regardless of vaccination status. False positive [tests] happen regardless of vaccination status. What is more, SRFR cites to the statistics of test results when citing probability of the unvaccinated being CV19 positive, and then states test results are not accurate as an accommodation. Flip-flopping on the veracity of tests to suit the narrative does not bode well for Defendant's undue burden analysis.

One day after terminating Plaintiffs SRFR implemented testing, a hardship as to the unvaccinated, and allowed those who tested negative to remove their masks. SRFR directly relied on testing results no more than ONE day after deeming the unvaccinated too great a risk and later claiming tests were too expensive, hard to obtain, and unreliable. Ex. M SRFR_02084, 927. What is more, the cited expense and scarcity concerns were of no concern one day after the mandate when only vaccinated staff remained. Id., Ex. E. RFP_EEOC000003

Determination of whether a particular accommodation would have posed an undue hardship is a factual inquiry that "must be determined within the particular factual context of

each case." *Balint v. Carson City*, 180 F.3d 1047; accord. *Groff,* 143 S. Ct. 2297 (describing the "undue-hardship standard" as a "context-specific standard."). Id. "Undue hardship means something greater than hardship. Undue hardship cannot be proved by assumptions nor by opinions based on hypothetical facts." *Anderson v. Gen. Dynamics Convair Aerospace Div*., 589 F.2d 397 (9th Cir. 1978) at 402. See also, *Burns v. S. Pac. Transp. Co*., 589 F.2d 403 (9th Cir. 1978). SRFR used hypothetical facts and assumptions despite a safe operating history over the course of 18 months. Plaintiffs were performing, satisfactorily, all their jobs' duties, in the presence of others, in diverse environments including aid cars throughout the pandemic up to October 18. Affidavit of Plaintiffs, et al, p. 2 ln 2-25. More PPE creates a safer work environment. Ex . I, Dep. McConnell, p. 15 ln 3-5, ln 7-11. If safety was the primary concern, then the standard should have been a requirement for boosters. No boosters were required. Id. Boosters are the safest way to ensure immunity, and the vaccinated are able to obtain boosters six months after their last dose.[1] The Playbook had separate return to work instructions for the boosted because they were deemed less of a risk than the un-boosted. SRFR allowed the un-boosted, who are a riskier group of employees, to continue working while following the Playbook. Ex. A1-3, Tribbett Decl. Ex I McConnell Dep. , p. 54, 1n 19-25 p. 57 ln 24-25, p. 58 ln 1-9.

What SRFR failed, utterly, to analyze was whether the [proposed] accommodations would allow the unvaccinated to safely overcome the four conflicts cited as the original reason Plaintiffs could not be accommodated. Dkt #1-6 SRFR did not endeavor to consider

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[1] https://www.ncbi.nlm.nih.gov/pmc/articles/PMC9538962/#:~:text=Successful%20vaccination%20depends%20on%20the%20induction%20of%20long%E2%80%90term%20immunological%20memory.&text=The%20infected%20participants%20exhibited%20S,months%20after%20the%20booster%20dose.

each employee's CV19 history and the risk they posed in fulfilling their job duties. Ex. H, SRFR 30(b)(6), 75:13-76:20. Safety concerns were warranted, but SRFR failed to undertake the requirements of Title VII. To determine that the same accommodation for two groups of people, both of whom can transmit and receive CV19, imposes a burden on one group and is not a burden as to another differentiates with respect to the terms of the employment illegally and discriminates against a protected class. 42 USC §2000e-2. There were 140 vaccinated employees who SRFR accommodated with the same requests. SRFR v30(b)(6) Dep. p. 60:9-61:10, 65:24-66:11. Testing before shift would have caught positive cases regardless of vaccination status. There are no studies showing the control measures [testing] do not work on the unvaccinated. SRFR tracked it's positive CV19 cases by name and a variety of other data and information which they could have analyzed in determining accommodation risk. Tribbett Decl. Ex. K, SRFR_019778, column M. South County, a district who also utilized the Playbook, employs accommodated 27 employees without placing them on leave. Tribbett Decl. Ex. Q, South Cty 30(b)(6) Dep. 8:25-9:5, 14:6-9, 16:22-17:1. Two of the Plaintiffs worked for neighboring Districts which accommodated their employees. Both responded to SRFR EMS calls as mutual-aid contracted Districts, and Plaintiff Stickney worked for a District which also had a contract with the DOC. Stickney Aff. p. 5, #18-19

i. Masking is a safe and reasonable accommodation

Nothing in the record supports the supposition that masks would not have resolved the conflict(s) listed by SRFR. Dkt #1-6. Masks do not functionally differ based on vaccination status. Masks are effective at preventing the spread of CV19 for both the vaccinated and unvaccinated. Tribbett Decl. Ex L, O'Brien Dep. p. 27, ln 5-9. In fact, SRFR required masking of their vaccinated employees because they were still able to catch and transmit

CV19. Ex.A1-3 PB SRFR_021101, Ex H SRFR 30(b)(6) Dep. p. 49 ln 15-25, p. 46 ln 1-2.

Under *Groff*, SRFR can lay hold of no fact proving masking of the unvaccinated was a safety risk resulting in hardship or undue burden on their business. *Groff, 2023,* U.S. Lexis 403. Throughout the pandemic, all EMS calls required SRFR firefighters to wear N95 masks and full PPE. SRFR 30(b)(6) Id. N95 masks were and are the safest insurance against the transmission of CV19 as evidenced by their use along with other PPE while on EMS calls[2]. Id. In July of 2021 during the Delta variant wave as it became obvious that the vaccinated could catch and transmit CV19 SRFR reinstituted masking amongst all employees. Tribbett Decl. Ex. A1, SRFR _019779. Masks were never unavailable. O'Brien Dep. p. 17, ln 6-16. SRFR has no documented cases of CV19 transmission during or following an EMS call. Ex. I McConnell Dep., 41:9-25, 42:1-6, 44:5-16. Chief O'Brien attested to the fact that masks were working during the height of the pandemic. Ex. L, O'Brien Dep. 49:21-23. He was also unaware of any information regarding masks being ineffective. Id. 49:24-50:3.

As the Ninth Circuit very recently made clear, [government] employers may irreparably harm Christian employees, such as Plaintiff, by effectively declaring them to be…dangerous. See *Keene v. City & Cnty. of San Francisco,* 2023 U.S. App. LEXIS 11807 at *7 (9th Cir. May 15, 2023) (Keene) [quoting Diocese of Brooklyn, 141 S. Ct. at 68]. Such was the case at SRFR.

ii. **SRFR cannot claim testing unduly burdened their business.**

Immediately after failing to accommodate the unvaccinated with testing, SRFR implemented mandatory testing of all vaccinated staff beginning November 9th, 2021.

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[2] https://newsroom.uw.edu/blog/your-mask-game-new-year-expert-says

Tribbett Decl. Dkt 1-7, Ex. M, SRFR_020804, 000927. SRFR relied on testing for the vaccinated due to asymptomatic breakthrough cases and allowed for testing as a safety measure. Id. Again, with this safety measure/accommodation in place, the unvaccinated could have been tested safely and effectively. There is no fact supporting the idea that tests do not work on unvaccinated individuals. Ex. H SRFR 30(b)(6) Dep. p. 50:4-12. No set of facts proves this. Id. 85:23-86:3. SRFR failed, crucially, to make a fact-specific inquiry regarding their own operations over the course of CV19. *See Balint*, 180 F.3d 1047. Had they done so, they would have been able to determine what risk they were dealing with and whether testing would help remove the conflict.

The need to halt the spread of COVID-19 does not automatically make it necessary for government employers to run roughshod over their employees' religious freedom. *Keene,* 2023 U.S. App. LEXIS 11807 at *7 [quoting Diocese of Brooklyn, 141 S. Ct. at 68]. As Justice Gorsuch recently stated: "Fear and the desire for safety are powerful forces. They can lead to a clamor for action – almost any action – as long as someone does something to address a perceived threat." *See Arizona v. Mayorkas*, 2023 U.S. LEXIS 2062 at *7. Unfortunately, SRFR was the victim of such clamor for action.

iii. Social Distancing is effective and worked for SRFR throughout the pandemic.

When and where available the social distancing method worked for SRFR. Ex. H, SRFR 30(b)(6) Dep. p. 77 ln 6-12. They had no known firefighter to firefighter transmissions despite intimate living/working quarters. Ex. I McConnell Dep. p. 41 ln 9-25, 42 ln 1-6, 44 ln 5-16. Each employee had been following expert advice from the playbook guidelines regarding social distancing. Ex. A1 PB 7-2021. SRFR did not contemplate a requirement that the vaccinated eat alone off-site or in their car, work-out outside exclusively, or share rooms

and bathrooms with only other unvaccinated individuals. Petersen Aff. p. 4, ¶6-7, Peterson Aff. p. 4 ¶3.

Admittedly, EMS response calls would not have allowed for social distancing at all times, but the playbook accounted for these facts and required either PPE level II or III depending on the nature of the call. Ex A1-3 Playbook, SRFR 30(b)(6) Dep. 32:13-33:15. This was not a novel situation, 18 months of operations showed SRFR that wearing PPE in the aid car prevented transmission such measures kept the firefighters and the public safe as evidenced by a lack of transmission over the course of two years using PPE. McConnell Dep. p. 41 ln 9-25, p. 42. The individuals who drafted the Playbook were experts in their field, and SRFR relied on their guidance. Id. at p. 16 ln 3-16. Nothing in the playbook prohibited accommodation, and other Districts accommodated their employees using the Playbook guidance. Ex. A1-3, South County 30(b)(6) Dep. 8:25-9:2, Stickney Aff. 5, #18-19, Petersen Aff. p.7, #5. Social distancing was and is a safe and reasonable accommodation.

3. **SRFR's EEOC Reasoning does not Rise to Undue Hardship.**

Defendants EEOC failure to accommodate reasons differ from the original information given to Plaintiffs, Dkt. #1-4, Ex. E. Plaintiffs have already addressed concerns 1-2 supra. SRFR cites to concern regarding the public opinion as to accommodating, but employers cannot acquiesce to discrimination by public demand. Id.

SRFR claims the DOC told them they could not accommodate. Ex. E. #5, Tribbett Decl. Ex P SRFR_000876. However, DOC was under the same requirements [of the Proclamation 21-14] and was not in a position to dictate the requirements of Title VII to another employer. SRFR 30(b)(6) 146:12-148:2. Nevertheless, it is of greatest importance to note that when SRFR brought the unvaccinated back to work in May of 2022 DOC had not

changed its position and no new communication was exchanged. Id.148:3-18. Additionally, two of the unvaccinated went to work for mutual aid contracted districts which could respond to DOC EMS calls. Stickney Aff., p. 7 #5, Petersen Aff. p. 5.

Lastly, WCIA excludes communicable diseases under the policy and is not specific to vaccination status. Ex. E #6, SRFR 30(b)(6) 137:15-139:14. The policy in place, which SRFR used to justify the termination of the unvaccinated, had stated the same language since it was put in place in January 2021 Id. Further, the exclusion does not differentiate based on the vaccination status. It is an exclusion which does not hinge on vaccination status. What is more, it would be virtually impossible to prove transmission from one person to another for purposes of liability. In sum, SRFR's EEOC document is an attempt to conjure reasons why the unvaccinated could not be accommodated.

C. SRFR's Subsequent Actions Belief Their Assertion That Accommodation Was a Hardship/Burden.

SRFR brought their employees back to work and accommodated them with no change to the accommodations or surrounding hardship that had previously been alleged. Dkt #1-8. Less than seven months after failing to accommodate SRFR course corrected what was an erroneous premise to begin with. Accommodating SRFR unvaccinated employees was not an undue burden or hardship. Id. SRFR failed to state what parameters warranted the change. Although the Delta and Omicron waves were cited one preceded the failure to accommodate and followed in December of 2021. By February 2022 the Omicron wave was over. SRFR failed to identify any objective fact-specific reasons why the accommodations no longer posed a hardship in April 2022. Tribbett Decl. Ex. R SRFR_021787-803.

If the job applicant actually requires accommodation of that religious practice, and the employer's desire to avoid the prospective accommodation is a motivating factor in his

decision, the employer violates Title VII." Id. at 2033. *Mendoza v. Roman Catholic Archbishop,* 824 F.3d 1148, 1149-1150. SRFR allowed fear of transmission to cloud their assessment of the reasonableness of accommodating the Plaintiffs in October of 2021. The accommodations were cost-effective and safe regardless of vaccination status. Under the legal standard of Title VII accommodation analysis SRFR cannot show an undue burden in accommodating the Plaintiffs with masking, testing, and social distancing including the recommendations of the Playbook.

VI. CONCLUSION

The defendant can show no facts internal to operations of SRFR operations supporting a claim that these highly trained, honorable, para-military employees were unsafe in the 18 months before being put on leave nor in their return in May of 2022. Firefighters have been trained to handle high-risk situations with transmissible diseases, viruses, bacteria, fire, tragedy, death, and danger most will never encounter. To say that they could not have safely performed their jobs is untrue for all of the foregoing reasons. Accommodating Plaintiffs with masking, testing, and social distancing as well as additional PPE would not have been an undue burden regarding expense or risk. Summary Judgment must be granted in favor of Plaintiffs.

Dated this 21st day of December 2023.

/s/ Tracy Tribbett
Tracy Tribbett